

INFORMATION ON THE NEW CONTRIBUTIONS OF THE THESIS

Thesis title: “*Limitations to copyrights and related rights – Theoretical and practical issues*”.

Major: ***Civil law and Civil Procedural law***

Code: **9.38.01.03**

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Scientific supervisor: Assoc. Prof. Dr. Vu Thi Hai Yen and Dr. Tran Le Hong

Institution: ***Hanoi Law University***

SUMMARY ON NEW CONTRIBUTIONS OF THE THESIS

- First, the thesis approaches theoretical issues of copyrights and related rights protection from the perspective of the exclusive rights provided by laws for creators, analyzes three common characteristics of copyrights and related rights protection in relation to other parts of intellectual property rights as well as characteristics expressing the relationship between copyright and related rights.

- Second, the thesis devises a scientific concept of the limitations to copyrights and related rights which has not been fully and uniformly shaped in Vietnamese legal science. It is the first thesis analyzing four characteristics of limitations to copyrights and related rights in terms of subjects, persons/legal entities whose rights are limited, persons/legal entities enjoying the benefits, and the purpose of limitations to copyrights and related rights. In addition, the thesis also deeply analyzes the theoretical basis of the regulations on limitations to copyrights and related rights in the philosophical view of John Locke, Friedrich Hegel, the doctrine of balance of interests, the doctrine of exhaustion of rights, the doctrine of fair dealing and fair use as well as the requirements of ensuring basic human rights. Moreover, the thesis also defines the concept, content and structure of regulations on limitations to copyrights and related rights and analyzes the development of such regulations in international treaties to which Vietnam is a member.

- Third, the thesis scientifically and comprehensively analyzes the regulations of the Vietnamese legal system on limitations to copyrights and related rights, thereby points out and objectively evaluates the inadequacies and limits in such regulations as well as highlights the shortcomings and difficulties in the legal application. Then the thesis concludes the compatibility and reasonableness of such Vietnamese provisions.

- Fourth, the thesis also raises the orientations and guiding viewpoints in legal policies in general and the goals that need to be ensured in the process of perfecting legal regulations on limitations to copyrights and related rights in particular.

- Fifth, the thesis proposes recommendations to improve Vietnamese intellectual property law on general conditions for applying limitations to copyright and related rights, to perfect regulations on exceptional cases for non-infringement of copyrights and related rights and cases where published works, audio and visual fixation can be used without obtaining permission but paying royalties are required as well as some solutions to advance the effectiveness of applying the law on limitations to copyrights and related rights.

Scientific supervisor

Candidate